NewsBank inc.

Which bills will Gov. Newsom sign into new California laws?

September 11, 2023 | Press Democrat, The (Santa Rosa, CA)
Section: State | 3534 Words
OpenURL Link

Stay up-to-date with free briefings on topics that matter to all Californians. Subscribe to CalMatters today for nonprofit news in your inbox.

It's California's most diverse Legislature ever, and one-fourth of lawmakers are new. But some things never change: Legislators wait until the last days of the session to pass a lot of bills.

In recent days, they have sent Gov. Gavin Newsom some significant legislation — to tax guns and ammunition, ban caste discrimination and decriminalize some psychedelic drugs. And before they finish nearly seven months of lawmaking late Thursday (or early Friday), legislators will approve many more bills. Of the more than 2,600 introduced, the most in a decade, nearly 220 had been sent to the governor as of Friday. Newsom has already signed some and vetoed a few others.

He has until Oct. 14 to sign or veto the final batch. Last year, he vetoed 169, while signing 997, including some very significant ones. The Legislature can override vetoes, if the bill's backers can win two-thirds majorities in both the Assembly and Senate. But that doesn't happen often, and in recent decades almost never.

Some significant measures ought to be to Newsom's liking: He has become more assertive in pushing his priorities in the Legislature — climate change last year, infrastructure and mental health this year.

Here are some of the noteworthy bills that CalMatters reporters are tracking. Bookmark this page for updates.

Clear up the ballot

By Sameea Kamal

WHAT THE BILL WOULD DO

Assembly Bill 421 started out as an ambitious reform of procedures for a state referendum, put on the ballot to repeal a law passed by the Legislature and signed by the governor. The original version introduced by Assemblymember Isaac Bryan, a Culver City Democrat, included more rules for signature gathering and other provisions designed to hit back at industry groups that are increasingly going to the ballot box to block laws they don't like.

But in its final form, the bill aims to reduce confusion for voters — sometimes created intentionally. This bill requires the ballot title and summary to be posed as a question for voters: "Keep the law" or "overturn the law?" That would be followed by a summary of the law. It would also require the measure's top funders to be listed, and, starting in 2025, the names of top supporters and opponents.

WHO SUPPORTS IT

Unions and advocacy groups that fought for environmental and worker protection bills that industry groups are aiming to overturn through the referendum process: SEIU California, the California Teachers Association, the Northern California Recycling Association and the Center for Biological Diversity. The bill is also supported by the League of Women Voters of California and the Dolores Huerta Foundation.

WHO IS OPPOSED

Industry groups including the Agricultural Council of California, California Association of Realtors and the California Manufactures and Technology Association, as well as Chamber of Commerce groups from around the state.

WHY IT MATTERS

Last year, California passed laws creating a task force to oversee wages in the fast food industry and to ban new oil wells near schools and homes. Industry groups have qualified measures for the November 2024 ballot to kill the laws. Even if they lose, they at least delay their implementation.

Also last year, voters in a referendum upheld a state ban on flavored tobacco. Would more direct ballot language make a difference in the outcome of these measures? It's not clear.

While the bill makes changes to the direct democracy process, it doesn't change the state's Constitution, so does not have to go to the voters.

Another provision in the bill creates a process for proponents of a referendum to withdraw their measure from the ballot. It's already being used in a deal between labor and the fast food industry to pull a measure off the November 2024 ballot.

GOVERNOR'S CALL □

Newsom announced Sept. 8 he had signed the bill, without comment. Bryan did in a statement: "A confusing referendum process has made it too easy for concentrated special interests to silence and manipulate the voice of voters in our communities, but with Governor Newsom's signature on AB 421 we are putting power back in the hands of the people."

© 2023 CalMatters

Decriminalize psychedelic drugs

By Ana B. Ibarra

WHAT THE BILL WOULD DO

Senate Bill 58, by Sen. Scott Wiener, a San Francisco Democrat, would ensure that people are not arrested or penalized for using and possessing certain plant-based hallucinogens starting in 2025. The substances include psilocybin and psilocin, the psychoactive ingredient in hallucinogenic mushrooms; mescaline (except peyote); and dimethyltryptamine, or DMT. A fourth substance, ibogaine, was scratched from the bill in a final round of amendments. This bill applies only to people 21 and older and does not legalize the sale of psychedelics.

The bill takes a more incremental approach for supervised medical use of psychedelics. It would require the state's health agency to form a working group to make recommendations for governing the future therapeutic use of these substances.

WHO SUPPORTS IT

The bill is sponsored by a veterans' group, Heroic Hearts Project. Combat veterans and retired first responders have testified in support of the bill, sharing their "transformational" experiences using psychedelics to help relieve suicidal thoughts and PTSD symptoms.

WHO IS OPPOSED

Registered opposition is largely made up of law enforcement groups. Mothers who have lost a child to an adverse

reaction after they ingested hallucinogens have also testified about their concerns during hearings. They've pushed for the bill to include more safeguards, arguing that while these substances may promise benefits for some people, they also come with risks.

WHY IT MATTERS

If Gov. Newsom signs this bill, California would join Colorado and Oregon in decriminalizing psychedelics. The current movement to make these substances mainstream is one attempt to help alleviate the ballooning mental health crisis. Growing research portrays the drugs as a promising tool in helping people heal from various mental illnesses, including depression and PTSD. But evidence is still limited and no psychedelic treatment has yet been approved by the U.S. Food and Drug Administration.

© 2023 CalMatters

Tax guns and ammo

By Alexei Koseff

WHAT THE BILL WOULD DO

AB 28 by Assemblymember Jesse Gabriel, a Woodland Hills Democrat, would impose an 11% excise tax on retailers and manufacturers for sales of guns or ammunition. Modeled on a similar federal levy for wildlife conservation, the tax could bring in an estimated $160 million annually for violence intervention programs, school safety improvements and law enforcement efforts to confiscate guns from people who are prohibited from owning them.

WHO SUPPORTS IT

Facing a higher two-thirds threshold for approval, the measure received widespread backing from Democratic lawmakers who argue that it would provide an essential, steady stream of funding to further California's gun safety efforts. Gun control advocates, physicians and nurses groups, local elected officials and even some police departments also endorsed it.

WHO IS OPPOSED

Gun rights groups contend the tax will unfairly burden lawful owners of firearms, particularly sports shooters and hunters who frequently buy ammunition, because businesses will simply pass the cost on to customers. They have suggested they will sue to stop it. Their complaint was echoed by Republicans and some Democrats who spoke against the measure in the Legislature.

WHY IT MATTERS

Lawmakers unsuccessfully pursued sales or excise taxes on guns and ammunition half a dozen times over the past decade, some of which never even got a hearing. Gabriel credited a changing political climate for finally pushing the policy through this session — including parents' anxiety over regular active shooter drills at schools and widespread anger over last year's U.S. Supreme Court ruling that tossed long-standing restrictions on carrying concealed weapons.

"The public is demanding this of us," Gabriel told CalMatters. "They are demanding that we have more solutions, that we protect their kids, to protect their communities."

Newsom, a vocal proponent of gun safety measures who has repeatedly discouraged legislators from pursuing new taxes in recent years, now must choose between two key governing principles.

© 2023 CalMatters

Ban book bans

By Carolyn Jones

WHAT THE BILL WOULD DO

Proposed by Assemblymember Corey Jackson, a Democrat from Moreno Valley, AB 1078 would penalize school boards that ban books and other education materials based solely on the materials' inclusion of history related to Black, Latino, Asian, Native American, LGBTQ people and other groups. It would amend the existing education code, which requires teaching materials to include the experiences and perspectives of diverse racial, ethnic and LGBTQ groups in curriculum.

WHO SUPPORTS IT

Gov. Newsom and State Superintendent of Public Instruction Tony Thurmond have been vocal proponents of the bill, approved by the Legislature along party lines. The American Civil Liberties Union is also in favor, writing: "To achieve equity in our public schools requires that students of all genders, Black, Indigenous, Latine, and LGBTQ+ students, and members of other ethnic and cultural groups see themselves reflected and respected in libraries, curricula, and classroom discussions–in every class, every grade, every day."

WHO IS OPPOSED

The California School Boards Association is against, saying that California already has a lengthy public process for adopting curricula, and that this bill would further inflame tensions between the state and local school boards. The Orange County Board of Education wrote: "This is a heavy-handed policy that is completely unnecessary and detrimental to school operations and financial stability. School districts are perfectly capable of making these decisions and procuring books and instructional materials accordingly. Furthermore, the responsibility of deciding what curriculum to adopt and what curriculum and books to discard should remain with the local school boards who are accountable to the parents, and the voters who elected them, and who are most closely affected by these decisions."

WHY IT MATTERS

The bill would stand in contrast to moves in Florida and other states to ban books featuring the history and perspectives of diverse groups of people. It also comes amid escalating sparring between Newsom and Florida Gov. Rick DeSantis over "culture war" issues and other policies. In California, the bill would exert the state's power over local school boards, which have largely operated with autonomy.

© 2023 CalMatters

Ban caste discrimination

By Sameea Kamal

WHAT THE BILL WOULD DO

SB 403 adds caste to the state's fair employment and housing law, and the education code, which currently prohibit discrimination based on race, gender and sexual orientation. Caste is a centuries-old social hierarchy system that, in countries including India and Nepal, has historically defined what jobs people can work or whether they can pursue education. The bill, which drew some vocal opposition, was amended to include caste as a subset of ancestry, which is already protected, instead of adding it as a separate category.

WHO SUPPORTS IT

Groups representing various South Asian communities, such as Equality Labs (which represents some Dalit Hindus, who are considered the lowest caste), Hindus for Caste Equity, the Jakarta Movement, the Sikh American Legal Defense and Education Fund, and the Alphabet Workers Union, as well as the California Employment Lawyers Association, California Environmental Voters and the California Labor Federation. Some activists say they are on a hunger strike until Newsom decides the bill's fate.

WHO IS OPPOSED

Dozens of Hindu community groups in California and beyond, including three Dalit advocacy groups. The split among the South Asian community spurred Democratic Assemblymembers Evan Low and Alex Lee, who both represent parts of the South Asian-heavy Silicon Valley, to call for a delay of the bill. But they later supported it.

WHY IT MATTERS

It is unclear whether caste discrimination is covered under state laws. Both supporters and opponents cite the state's investigation at Cisco, the San Jose-based networking and cloud management company. Opponents say the fact that the state can already look into allegations renders the bill unnecessary, while supporters say the case shows that caste discrimination is happening and must be addressed.

If signed by Newsom, California would be the first state in the U.S. with such a law. It could be particularly impactful for the tech industry, where Indian workers with bachelor's degrees made up 27% of tech workers in Santa Clara and San Mateo counties in 2021. Guha Krishnamurthi, an associate professor of law at the University of Oklahoma who has studied the bill, told CalMatters that the bill serves an important educational purpose — making managers and HR departments more aware of the issue.

© 2023 CalMatters

Reduce retaliation against workers

By Alejandra Reyes-Velarde

WHAT THE BILL WOULD DO

SB 497 would mandate that the California Labor Commissioner's office and state courts assume employers are illegally retaliating if they take certain disciplinary actions against a worker who in the prior 90 days has made a wage claim or a complaint about unequal pay. Employers would be able to rebut the retaliation assumption by showing that there is a legitimate, non-retaliatory reason for the employee discipline.

WHO SUPPORTS IT

The California Coalition for Worker Power, Equal Rights Advocates, and the National Employment Law Project cosponsored the bill, saying in a statement: "A majority of California workers who report violations to their employer or the government experience retaliation. When workers are too afraid to speak up, wage theft, unequal pay, and workplace hazards are allowed to flourish, making our communities less safe and equitable."

WHO IS OPPOSED

A coalition of employer organizations, including the California Chamber of Commerce, oppose the bill, warning it could subject employers to frivolous claims. "Courts already take timing into account when evaluating a retaliation claim," the groups wrote in a statement, adding, "Creating a presumption simply allows claims to proceed that should not be moving forward, which wastes valuable court and litigant resources."

WHY IT MATTERS

Labor activists said retaliation claims are rising as workers gain the courage to speak up about negative workplace conditions, but fear often keeps workers from filing claims. Retaliation complaints awaiting investigation by the state Labor Commissioner's Office have swelled almost five-fold from 2018 through 2021. By April 2023, the waitlist hit 4,878 claims.

In 2021, just 9 out of 237 completed cases were decided in a worker's favor. The rest were dismissed for lack of evidence.

"California has some of the strongest workplace and equal pay protections in the country," said Assemblymember Ash Kalra, the San Jose Democrat who presented the bill on behalf of Sen. Lola Smallwood-Cuevas, the Los Angeles Democrat who authored it. "However, our strong workplace protections are meaningless if workers are too afraid to speak up when their rights are violated."

© 2023 CalMatters

Consider gender identity in custody cases

WHAT THE BILL WOULD DO

AB 957 would require judges to consider whether a parent affirms their child's gender identity in making custody and visitation decisions. The bill would not mandate that a court side with the parent who affirms the child's gender identity. Instead, it would be one of many factors — including whether a parent has a history of drug or alcohol abuse or domestic violence and how much contact a parent has had with the child — in determining what is best for the child's health, safety and welfare.

WHO SUPPORTS IT

The bill passed along party lines. Democrats argued that it would protect the rights of LGBTQ children in divorces, particularly when the parents don't agree on their child's gender identity. Supporters also point to studies that transgender children are at higher risk for depression and mental health crises and could be in danger if with a parent who doesn't accept their identity. Equality California, the state's most prominent LGBTQ advocacy group, co-sponsored the bill, which is also backed by the California chapter of the National Association of Social Workers.

WHO IS OPPOSED

Republicans argued that judges already have discretion to consider what the measure requires. Several parents' rights groups also object to the bill, arguing that it would force family courts to ignore a parent's objections to a child changing their gender identity. The California Family Council, which has led rallies at the state Capitol this session, targeted this bill and others as government deciding how parents raise their children.

WHY IT MATTERS

While not necessarily a sweeping change to family law, this bill is another front in the battle over transgender children, which is playing out in California's public schools. Assemblymember Lori Wilson, the bill's author whose son came out as transgender as a teenager, wiped away tears as she defended the measure during the final debate on Friday. She told colleagues that it does not "put the thumb on the scale" for a parent who affirms their child's gender identity — and certainly doesn't allow the state to take custody from a parent who doesn't. In July, she told CalMatters that her office received death threats over the bill when conservative political figures found out about it.

Newsom has been on the side of transgender students. Last year, he signed into law a bill designed to make California a refuge by shielding parents who travel from other states to access gender-affirming care and the doctors who provide it.

© 2023 CalMatters

Limit hand vote counts in elections

WHAT THE BILL WOULD DO

AB 969 would ban hand-counting of votes, except in very narrow circumstances — in regular elections with 1,000 registered voters or fewer eligible to vote, and special elections with 5,000 voters or fewer. Other than those small elections, the bill requires election officials to use certified voting machines and prohibits them from ending a contract for such systems without having a replacement lined up. And the measure requires that any hand count plan must be approved by the secretary of state.

The bill is in response to the new conservative majority on the Shasta County Board of Supervisors voting in January to end the county's contract with Dominion Voting Systems, the target of election conspiracy theories from the 2020 presidential election. In March, the Shasta board voted to count votes by hand, starting with an election on Nov. 7. The measure would take effect immediately, so would apply to that election. Shasta County has voting machines — acquired for disabled voters — available.

WHO SUPPORTS IT

The Shasta County clerk, for starters. She agrees with Democratic Assemblymember Gail Pellerin, the bill's author and a former Santa Cruz election official, who argues that hand counts are imprecise, as well as costly. The League of Women Voters of California also objected to the Shasta board's actions.

WHO IS OPPOSED

Shasta supervisors' Chairperson Patrick Henry Jones told the Associated Press that the county will sue to stop the bill if it's signed. He argues that election officials cannot guarantee that voting machines aren't manipulated. "The state is now attempting to block us from being able to have a free and fair election without any outside influence," he told the AP. Most legislative Republicans voted against the bill.

WHY IT MATTERS

As Shasta County shows, deep-blue California hasn't been completely immune from election conspiracy theories fed by the Donald Trump-MAGA "Stop the Steal" movement. They surfaced in the 2021 gubernatorial election and again in the 2022 election. That isn't by accident: The Los Angeles Times reported in July that Douglas Frank, the "Johnny Appleseed" of election fraud, has been concentrating on California.

State and local election officials and Democrats are concerned. They're pushing back, and this bill is part of that effort.

© 2023 CalMatters

Increase stipend to diversify juries

WHAT THE BILL WOULD DO

AB 881 would expand a test of higher jury service payments — started in San Francisco in 2022 under another bill by Assemblymember Phil Ting, a San Francisco Democrat — to four more counties. By increasing the daily stipend from $15 to $100, the goal is to diversify juries in criminal trials. To qualify, a juror's household income must be less than 80% of their area's median income and they cannot be compensated by their employer, or must be self-employed or unemployed.

Under current law in the 57 other counties, employers are required to let workers serve on juries but are not

required to pay them. Low-wage employees are excused from juries due to financial hardship, and many of them are people of color. The bill initially specified Alameda, Kern, Los Angeles and Monterey as the new test counties. The final version lets the state Judicial Council select the four counties to try the program until Jan. 1, 2027.

WHO SUPPORTS IT

San Francisco District Attorney Brooke Jenkins and the San Francisco public defender's office, which says that criminal trials are less fair without diverse juries and that some defendants accept plea bargains rather than risk a jury trial. "This is not justice," the office says in an argument submitted to the Legislature. "On the contrary, these plea deals often lead to incarceration, devastating families and historically criminalized communities."

WHO IS OPPOSED

While the bill didn't have official opposition, it does come with a cost of $4 million to $9 million a year, though the Judicial Council will be allowed to accept private or other money.

WHY IT MATTERSThis bill is another part of criminal justice reform: The U.S. Constitution guarantees criminal defendants the right to be judged by a jury of their peers. But that doesn't always happen in practice, particularly for the poor and people of color. The Be The Jury program helped San Francisco courts get closer to that ideal. In its first year, 495 people participated, in 9% of criminal trials: 84% said they could not have served without the higher stipend, 60% identified as a person of color and they reported a median household income of $38,000 a year, far below the citywide average of nearly $122,000.

© 2023 CalMatters

Copyright (c) 2023 The Press Democrat (Santa Rosa, CA)

- **Citation (apa Style)**
  Which bills will Gov. Newsom sign into new California laws?. (2023, September 11).*Press Democrat, The (Santa Rosa, CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19401261DDB47E00.